

National Highways(Manner of Depositing the Amount by the Central Government with the Competent authority for Acquisition of Land) Rules, 1998

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National Highways(Manner of Depositing the Amount by the Central Government with the Competent authority for Acquisition of Land) Rules, 1998

UNION OF INDIA

India

National Highways(Manner of Depositing the Amount by the Central Government with the Competent authority for Acquisition of Land) Rules, 1998

Rule

NATIONAL-HIGHWAYS-MANNER-OF-DEPOSITING-THE-AMOUNT-BY-THE-CENTRAL-GOVERNMENT-WITH-THE-COMPETENT-AUTHORITY-FOR-ACQUISITION-OF-LAND-RULES-1998 of 1998

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National Highways(Manner of Depositing the Amount by the Central Government with the Competent authority for Acquisition of Land) Rules, 1998

Published vide Notification GSR 12(E), dated 4.1.1999, published in the Gazette of India, Extra, Part 2, Section 3(i),

dated 4.1.1999.

211.

In exercise of the powers conferred by clause (aa)of sub-section (2) of section 9 of the National Highways Act, 1956 (48 of 1956), the Central Government hereby makes the following rules, namely:

1.

Short title and commencement

(1)

These rules may be called The National Highways(Manner of Depositing the Amount by the Central Government with the Competent authority for Acquisition of Land) Rules , 1998.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

The manner of depositing money with the competent authority

(1)

Subject to the provisions of the act, the existing agency authorised by the Central Government in this behalf shall deposit,

(a)

the under section 3-G of the Act, and

(b)

where the amount determined by the arbitrator under section 3-G of the Act is in excess of the amount determined by the competent authority, the excess amount together with interest, if any, awarded by the arbitrator, within seven days of such determination or award by the competent authority or by the arbitrator, as the case may be, with the competent authority through demand draft.

(2)

The competent authority shall deposit the amount received under sub-rule (1) in a separate Public Deposit Account in the Public Account of India and the provisions of sub-sections (2) to (4) of section 3-H of the act shall apply to such deposit.

Explanation .For the purpose of this rule,

(a)

Act means the National Highways Act, 1956(48 of 1956);

(b)

the expression executing agency shall have the same meaning as assigned to it under clause (d)of rule 2 of the National Highways Rules, 1957.

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